



## Order under Section 69 / 89 Residential Tenancies Act, 2006

**Citation:** Prevost v Lallier, 2026 ONLTB 2170

**Date:** 2026-01-06

**File Number:** LTB-L-075984-25

**In the matter of:** Unit 1, 37 CEDAR ST  
KAPUSKASING ON P5N2B1

**Between:** Kevin Prevost Landlord

**And**

Steven Lallier Tenant

Kevin Prevost (the 'Landlord') applied for an order to terminate the tenancy and evict Steven Lallier (the 'Tenant') because the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has wilfully or negligently caused damage to the premises

The Landlord also applied for an order requiring the Tenant to pay the Landlord's reasonable out-of-pocket costs the Landlord has incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex.

This application was heard by videoconference on December 9, 2025. Only the Landlord attended the hearing.

As of 3:31 p.m., the Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

### Determinations:

#### *Preliminary Issue – Second N5*

1. On June 24, 2025, the Landlord gave the Tenant a first, voidable N5 notice of termination, deemed served on June 25, 2025, with a termination date of September 1, 2025 (the '1<sup>st</sup> N5 Notice'). In summary, the 1<sup>st</sup> N5 Notice alleges that the Tenant and/or his guest caused water damage on March 3, 2025, May 31, 2025 and on June 24, 2025 and caused damage to the rental unit by making holes in the walls and drawing or writing all over the

walls, cupboards, fridge and bathroom. In addition, it was alleged that the carpet in the entry area of the rental unit had burn marks caused by cigarettes.

2. The 1<sup>st</sup> N5 Notice stated that the Tenant had 7 days to correct the problems described in the notice and could do so by repairing the damaged property or paying the Landlord \$7,000.00.
3. On September 2, 2025, the Landlord gave the Tenant a second N5 notice of termination, deemed served on September 3, 2025, with a termination date of September 30, 2025 (the '2<sup>nd</sup> N5 Notice'). The 2<sup>nd</sup> N5 Notice does not contain any new allegations. Rather, it simply states that the Tenant did not void the 1<sup>st</sup> N5 Notice by repairing the damage alleged or paying the Landlord \$7,000.00.
4. Subsection 68 (1) of the *Residential Tenancies Act, 2006* (the 'Act') allows a landlord to serve a second N5 notice of termination if there is a further contravention of the Act. It does not allow a landlord to give a second notice for the same reasons as the first notice. Specifically, subsection 68 (1) of the Act states,

(1) A landlord may give a tenant notice of termination of the tenancy if,

- a) a notice of termination was given to the tenant under section 62, 64 or 67; and
- b) more than seven days but less than six months after the notice mentioned in clause (a) was given to the tenant, an activity takes place, conduct occurs or a situation arises that constitutes grounds for a notice of termination under section 60, 61, 62, 64 or 67, other than an activity, conduct or a situation that is described in subsection 61 (1) and that involves an illegal act, trade, business or occupation described in clause 61 (2) (a) [emphasis added].

5. Accordingly, I found the 2<sup>nd</sup> N5 Notice to be defective. However, the Landlord still wished to proceed based on the 1<sup>st</sup> N5 Notice. As the application was filed within 30 days of the termination date set out in the 1<sup>st</sup> N5 Notice and the allegations remained the same, the application was amended and proceeded based on the 1<sup>st</sup> N5 Notice.

### *The Application*

6. As explained below, the Landlord has proven, on a balance of probabilities, the grounds for termination of the tenancy and some of the claims for out-of-pocket costs. Therefore, the tenancy is terminated, effective January 31, 2025, and the Tenant shall pay the Landlord out-of-pocket costs and the costs of filing the application in accordance with the order below.
7. The Tenant was in possession of the rental unit on the date the application was filed.
8. The Tenant did not stop the conduct or activity described in the 1<sup>st</sup> N5 Notice within seven days after receiving the notice, being from June 25, 2025 to July 1, 2025. Therefore, the Tenant did not void the 1<sup>st</sup> N5 Notice in accordance with s.64(3) of the Act.

*Landlord's Evidence*

9. The Landlord is the owner of the residential complex, which is a building that contains 4 rental units.
10. The Landlord testified to the events of water damage described in the 1<sup>st</sup> N5 Notice. He also testified that on the dates described in the notice, it was noted that there was significant damage to the rental unit such as holes in the walls and writing everywhere. The Landlord stated that he told the Tenant that he could not be creating holes or writing all over the walls and cupboards and that he would be back in a week to see if the Tenant fixed these issues. The Landlord stated that he inspected the unit again on July 3, 2025 and found that nothing had been done. During the inspection, the Landlord took photos of the rental unit which were tendered as evidence. In the photos there are markings, writing and/or scribbling all over the walls, the kitchen cupboards, the fridge and some holes in the walls were visible.
11. The Landlord obtained a quote to clean the rental unit, which was \$3,390.00. The quote included washing all the walls and removing graffiti, washing the baseboards and cabinets, cleaning and disinfecting the bathroom and steam cleaning the carpets. A copy of the quote was tendered as evidence.
12. The Landlord stated that the remaining costs claimed were based on the costs of the materials required to repair the holes in the walls, prime, paint, replace the carpet in the rental unit and for his labour. The Landlord stated that the prices he obtained for the materials as set out in the application were obtained from Home Hardware.

*Analysis*

13. Based on the uncontested evidence of the Landlord, I find on a balance of probabilities that the Tenant or someone the Tenant has permitted in the rental unit has wilfully or negligently caused undue damage to the rental unit by creating holes in the walls and drawing, scribbling or writing all over the walls and cupboards and the fridge in the rental unit. The photos tendered as evidence show the markings to be excessive and many of the markings appear to be done with permanent marker. Given the excessive amount of markings throughout the rental unit, I find it more likely than not that this was done intentionally by the Tenant and/or someone the Tenant permitted in the rental unit.
14. The Landlord claimed \$7,000.00 for reasonable out-of-pocket costs the Landlord has incurred or will incur to repair or replace undue damage to the rental unit. This amount is based on the quote obtained for cleaning services in the amount of \$3,390.00, approximately \$2,078 to repair and paint the walls in the rental unit, and approximately \$1,643.57 to replace the carpet in the rental unit. However, based on the evidence provided, I do not find \$7,000.00 for out-of-pocket costs to be reasonable.
15. In this regard, there was no evidence provided to support the Landlord's allegations that the carpet was damaged or needed replaced. Furthermore, while I accept that the walls and cabinets will require cleaning as a necessary part of the repair process the remaining amounts claimed in the quote for cleaning are not in relation to damage. Put another way,

simply because areas of the rental unit are dirty and require disinfection do not mean they are damaged.

16. The Landlord stated that he would be doing most of the repairing and painting himself and the bulk of the costs claimed to repair and paint the walls is for the Landlord's labour, which the Landlord calculated in the application as being 20 hours at \$80.00 per hour, which totals \$1,600.00. The Landlord's labour is not an out-of-pocket expense.
17. Accordingly, after deducting the amounts claimed for carpet replacement, cleaning costs unrelated to damage, and the Landlord's labour, the total amount I find appropriate for out-of-pocket costs is, \$1,834.00, which is calculated as follows: \$1,356.00 for cleaning + \$478.00 repair materials = \$1,834.00. The Tenant shall be required to pay this amount in accordance with the order below.

*Relief from Eviction / Section 83 of the Act*

18. The Landlord requested termination of the tenancy. As the Tenant was not present to speak to their circumstances, the Landlord was asked if they were aware of any circumstances of the Tenant that would give rise to delaying or denying eviction. The Landlord submitted that they were not aware of any such circumstances but did state that the Tenant receives ODSP.
19. I note that the Tenant's rent is quite low and, given his income source, I find a brief delay of eviction to be appropriate in the circumstances to allow the Tenant some additional time to find affordable housing.
20. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to postpone the eviction until January 31, 2026 pursuant to subsection 83(1)(b) of the Act.

**It is ordered that:**

1. The tenancy between the Landlord and the Tenant is terminated. The Tenant must move out of the rental unit on or before January 31, 2026.
2. If the unit is not vacated on or before January 31, 2026, then starting February 1, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
3. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after February 1, 2026.
4. The Tenant shall pay to the Landlord \$1,834.00, which represents the reasonable costs of repairing the damage the damaged property.
5. The Tenant shall also pay to the Landlord \$186.00 for the cost of filing the application.
6. The total amount the Tenant must pay the Landlord is \$2,020.00.

7. If the Tenant does not pay the Landlord the full amount owing on or before January 31, 2026, the Tenant will start to owe interest. This will be simple interest calculated from February 1, 2026 at 4.00% annually on the balance outstanding.

**January 6, 2026**  
**Date Issued**

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Rachel Gibbons  
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor  
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenant expires on August 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.